

Smti. Atashi Debnath vs Sri Santi Debnath on 16 April, 2025

Author: T. Amarnath Goud

Bench: T. Amarnath Goud

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HIGH COURT OF TRIPURA
A_G_A_R_T_A_L_A
Mat. App. No.16 of 2023

1. Smti. Atashi Debnath

.....Appellant

-V E R S U S-

1. Sri Santi Debnath

..... Respondent

B_E_F_O_R_E HON'BLE MR. JUSTICE T. AMARNATH GOUD HON'BLE MR. JUSTICE
BISWAJIT PALIT For Appellant(s) : Mr. Ratan Datta, Advocate.

For Respondent(s)	:	Mr. Rumela Guha, Advocate. Ms. Sudipa Nath, Advocate.
Date of delivery of judgment and order	:	09.04.2025
Date of pronouncement	:	16.04.2025
Whether fit for reporting	:	YES/NO

JUDGMENT & ORDER

[T. Amarnath Goud, J]

Heard Mr. R. Datta, learned counsel appearing for the appellant also heard Ms. R. Guha, learned counsel appearing for the respondent.

[2] This is an appeal filed under Section-28 of the Hindu Marriage Act, 1955 read with Section-19(1) of the Family Courts Act, 1984 against the impugned judgment and decree dated 02.09.2023 and 04.09.2023 respectively passed by the learned Judge, Family Court, Court No.1, Agartala, West Tripura, in Title Suit (Divorce) No.47 of 2019 whereby and whereunder, the prayer of the husband respondent under Section- 13(1)(i)(ia)(ib) of Hindu Marriage Act, 1955 is allowed and marriage is dissolved in between the appellant-wife and the respondent-husband.

[3] The facts of the case are that the marriage between the parties was solemnised on 14.12.1979 as per Hindu Vedic Rites and ceremonies. At the time of marriage husband respondent was aged about 21 years and respondent was 19 years. The husband respondent completed electrician course from ITI, Tripura and wife appellant also obtained weaving course from ITI, Tripura. The husband respondent and wife appellant had closely associated each other and fallen into the deep love relation as they were in habitant of same area within a short distance. Out of love affair their marriage was solemnised on 14.12.1979 at Laxmi Narayan Bari, Agartala as per Hindu Rites and Customs. After marriage they started living together as husband and wife. The husband respondent made so many wild allegations against the wife appellant in his plaint.

[4] After receiving the notice from the learned Judge of Family Court, Agartala the wife appellant appeared and filed her written statement admitting her marriage with the respondent but denied the entire allegations of the husband respondent made in his petition for divorce. She further contended that the respondent is habitual drunker. She further stated that the husband respondent suppressed the real fact and made false statement for misleading the Court. The appellant further contended that there were huge allegation including the corruption against the husband respondent where he was posted, he involved himself in corrupted activities and that is why he would not be allowed to stay in a station long.

[5] Having heard the learned counsel appearing for the parties and gone through the material evidence on record, the learned Court below has observed as under:

"46. In the result, the petitioner-husband Sri Santi Debnath has successfully established the case of different types of cruelty including desertion for granting decree of divorce against the respondent-wife Smt. Atashi Debnath and so the prayer of the petitioner under Section-13(1)(ia) &(ib) of the Hindu Marriage Act, 1955 is allowed. There shall be no marital bonding between petitioner-husband Sri Santi Debnath and respondent-wife Smt. Atashi Debnath from today i.e. from 2nd September, 2023 and hence the marriage is dissolved in between them.

Petitioner will continue to pay Rs.7,000/- per month as a maintenance allowance until further order of the Court as the divorced wife is also entitled to maintenance till her remarriage or till her death.

47. The case is disposed of on contest without cost....."

[6] Being aggrieved by and dissatisfied with the same, the respondent, the appellant herein, has preferred the present appeal before this Court for redress.

[7] Mr. R. Datta, learned counsel appearing for the appellant-wife has submitted that on 18.04.2016 the wife appellant was driven out from the matrimonial home and then she took shelter in her daughter's house. Thereafter finding no other alternatives the wife appellant had filed a petition under Section-125 of Cr.P.C vide case No. Crl. Misc 493 of 2018 for maintenance. The learned Court below after recording the evidence of both the parties and also after hearing, passed an order of

maintenance along with certain observations.

[8] During recording of the evidence of the divorce case vide no. TS (D) 47 of 2019 the appellant submitted the said judgment passed by the Court of learned Family Judge, Agartala, West Tripura, which is marked as Exhibit-E series but the learned Court below failed to appreciate the same. It may be noted that the judgment and order passed in Crl. Misc 493 of 2018 was not challenged before the competent Court of law and the said judgment and order has reached its finality. The allegations made by the husband respondent in the divorce suit are the same to the averments made in the written statement submitted in Misc Case No. 493 of 2018. But the court of learned Family Judge, discarded all the allegations made by the husband respondent, but the learned Judge Family Court believed and relied the allegations made by husband respondent against the wife appellant without any reasons and explanations.

[9] It was the specific averments and evidence on record that the wife appellant was compelled to leave the matrimonial home 18.04.2016 and thereafter she filed the petition for her maintenance before the court of law. Before 18.04.2016 the husband respondent never raised any allegations against the wife appellant. After filling of the maintenance case the husband respondent cooked up a story and filed the Suit for divorce. So it is crystal clear that the allegations brought by the husband respondent against the appellant are fabricated and out and out false.

[10] The appellant states that in her absence the respondent was so much keen to get close with another lady and he shifted his quarter to another one which was nearer and easily accessible for him. It also came to the appellant's knowledge from one of her neighbours that other people in that quarter complex complained to the respective Minister of the Department i.e. the than Minister Sri Manik Dey, as a result of which he was bound to submit application for voluntary retirement which also got published in a newspaper, but the learned Court below has failed to appreciate the same. The appellant specifically stated in her written statement as well as examination-in-chief that one time her husband threatened her to leave the quarter and leave away from his life and he started to speed false rumours and humiliate the wife appellant in front of the near and dear ones.

[11] Ultimately finding no other alternatives she took shelter in her daughter's house (son-in-laws house). Even the son-in-law of the appellant tried to settle the matter and tried to reunite them but the respondent was very much arrogant to settle the dispute and ultimately due to his arrogance now the appellant has been staying in her daughter's house. It is also noted here that the daughter, son and son-in-law had taken an attempt to understand the husband respondent but the respondent was not interested to hear the son, daughter and son-in-law. Even the husband respondent bothered to hear his father, brothers and other relative. The respondent intentionally closed to that lady and he got into the illicit relation with her.

[12] The appellant states that the respondent would behave very much roughly with the appellant and also his son and daughter and also used to slang language with the appellant and respondent has not been making any relation with the son, daughter and son-in-law and other relatives. Even his son and daughter also was examined in the maintenance case vide Misc (Crl.) 493 of 2018 and they were main witness against their father. The appellant has no source of income of her own and is

fully dependent upon the income of her husband and therefore the appellant filed the maintenance case against the respondent vide case no. CrI.Misc (main) 493 of 2018, but the learned Court below failed to appreciate the same.

[13] The appellant is now aged about 62 years old and her daughter has already married and she has been living in her matrimonial house. The son also married and living at Tamilnadu along with his family. There is none to look after the wife appellant. She is always keen interest to stay with her husband. The wife was compelled to leave her matrimonial home, she never deserted the husband or wilfully left the husband house, but the learned Court below stated that there is a wilful desertion from the part of wife appellant, and for that reason learned Court below granted the decree of divorce. The Finding of the learned Court below is totally perverse, illegal and not tenable in the eye of law and as such the judgment and decree passed by learned Family Court is liable to be quashed.

[14] The respondent filed the divorce case on the ground cruelty and desertion, but before 2018, i.e. before filing the maintenance case the respondent did not file any case against the appellant for any kind of allegation of illicit relation after their marriage and the allegations of illicit relation by the husband against the wife appellant which is not proved, but the court of learned Family Judge failed to appreciate the same. So, the judgment and decree passed by learned Court in TS (D) 47 of 2019 is liable to be set aside.

[15] The husband respondent submitted 324 numbers of documents before the learned Court below but the respondent failed to show any documents that he took loan for purchasing land or took any permission from the authority or department of the power (serving) for purchasing land in the name of his family member or the appellant as per Civil Service Conduct Rules, but the learned Court below failed to appreciate the same. The respondent is not inclined or even interested in the marital relationship with the wife appellant even he is less interested for his duty as a husband.

He has never shown any interest in his wife after the appellant has left her family, but the learned Court below failed to appreciate the same.

[16] Mr. Datta, learned counsel appearing for the appellant has further contended that the respondent, the appellant-wife herein, that earlier the wife filed maintenance case in the year 2018 and after the maintenance case the husband filed the divorce case willfully stating fabricated ground of cruelty and desertion. There is allegation of illicit relation by the husband against the wife which is not proved in this case. According to her the husband assaulted the wife and drove her out from the house in the year 2017 but the wife did not file any case thinking of reconciliation. The husband is now a pension holder from the Electric Department and their marriage was held much earlier on last 14.12.1979. They pointed out that the husband had extra marital affair with one lady.

[17] He also disclosed the chief of OPW-2 in the maintenance case. It has been argued that as per Exhibit-27 and in all these documents there is mention of threat of life of the wife from the husband. She highlighted about voluntary submission of PW-3 i.e. the statement of O/C, GB TOP. It is argued that on the matter of illicit relation news was article published against the husband. In this case there is allegation and counter allegation by the parties against each other on the matter of extra

marital relation. According to the respondent the land was actually purchased by the son of the petitioner in the name of the respondent as he was doing a good job at that time. Why the husband failed to show any document that he took loan for the land purchase or took any permission from the authority for purchasing land in the name of his family member i.e. the name of his wife as per Civil Services Conduct Rules.

[18] It has been further contended that the respondent is a habitual drunkard, his younger brother Mrinal Debnath who is involved in Rose Valley Scam and earned huge money by exercising fraud to the people of the state of Tripura. Following the family tradition said Mrinal Debnath has been continuing physical and mental torture to his wife who is a Govt.

employee. The respondent also used to torture the appellant inhumanly and that was their family tradition to torture both mentally and physically. That, the respondent and the appellant hailed from the same locality and known to each other from their childhood but the cunning respondent stated that he was in dark about the social status of the appellant (wife) and her parents in nothing but a false statement from which it is crystal clear.

[19] Mr. Datta, learned counsel appearing for the appellant in support of his case has placed his reliance on some decisions of Court in F.A. No.01 of 2022 titled as Smti. Pramila Ghosh (Guha) v. Sri Anup Kumar Guha and in Mat. App.No.12 of 2015 titled as Sri Bijit Kumar Banik v. Smti. Kaberi Banik (Debbarma), wherein the Court has observed as under:

"[33] According to Ms. Dhar, learned counsel, in the given case, there are adequate materials available against the husband with regard to cruelty. It is pointed out by Ms. Dhar, learned counsel that there is corroborative and consistent evidence that the husband physically assaulted the wife by slapping her in presence of children. She could have filed a case seeking divorce against her husband because such grievous and un-excusable act of offence satisfies the test of cruelty. But the wife always tried for adjustment and condoned all his cruel conduct. Even day after the filing of the case under Section 498 IPC, she rushed to the police station and had withdrawn her complaint. The wife had thus, consistently shown her intention to stay with her husband amidst differences. But her husband who himself was at fault, brought the divorce suit against the wife. It is submitted by learned counsel that in the case of Savitri Pandey (supra) the Apex Court declined to grant divorce in favour of the appellant who tried to take advantage of her own wrong. Learned counsel of the appellant submits that in the present case also the appellant husband is trying to take advantage of his own wrong which should not be entertained by this court.

[34] We have already pointed out that in his divorce petition, the appellant has merely mentioned Section 13 of the Hindu Marriage Act and in the body of the petition he has highlighted certain instances which indicate that he wants divorce on the ground of cruelty and desertion. The evidence of the parties have been discussed in detail. We have re-evaluated and examined such evidence in the light of the judgments of the Apex Court relied upon by learned counsel of the parties. In all the

cases, relied upon by the learned counsel of the appellant, the factual contexts are completely different. In the case of Gurbux Singh(supra), the Apex Court has succinctly held that mere trivial irritations, quarrel, normal wear and tear of married life which happen in day to day life in all families would not be adequate for grant of divorce on the ground of cruelty. In Savitri Pandey (supra), the Apex Court has emphasized on the move of protecting the institution of marriage which is the basic unit of society. Also in the case of Naveen Kohli (supra), the Apex Court has held that except in the cases when the marriage is found totally dead, it would be appropriate for the courts and all concerned to maintain the marriage status as far as, as long as possible and whenever possible. In the case of Samar Ghosh (supra), the Apex Court after analysis and scrutiny of its past judgments on the issue, laid down certain decisions on the basis of which the allegations of mental cruelty can be decided. We are of the considered view that none of these tests is satisfied in the given case."

"5. After elaborate arguments on behalf of both sides, both the parties present in court have mutually consented to be away from each other in view of their domestic issues and prays for judicial separation for some period. As the parties are senior citizens and considering their case on special reasons and having humanitarian grounds not to precipitate the litigation and with a hope in future they will have better days this court is of the view that for granting judicial separation which would be appropriate instead of divorce."

[20] Ms. R. Guha, learned counsel appearing for the respondent- husband has submitted on the point of cruelty and desertion against the wife. The respondent wife filed several types of complaints in different forums in connection with illicit relation of the husband with another woman just to hackle him. Earlier she was working as a postal agent and earning some amount of money from commission. The husband gave funding to his wife to purchase land of 1 kani 4 gandas in the name of his wife. The wife filed maintenance case earlier and an order of monthly maintenance of Rs.7,000/- was granted to her. It is paid regularly.

[21] The respondent filed similar complaint to the O/C., GB TOP who deposed as PW-3 in this case where it is revealed that the wife did not mention any sort of illicit relation in that complaint. All allegations of the wife are bogus and false filed against the petitioner, the respondent herein. The respondent is now residing in an 'Ashram' as he has been ousted by his wife from the house which was purchased by him. The wife was complaining to various authorities for which the husband was compelled to take voluntary retirement. All these allegations were mental cruelty upon the husband for which he was bound to resign from his job and took voluntary retirement. Attention was drawn upon the cross of DW-2 in this case. The question was raised that why the wife did not file any RCR case to restore conjugal life. There is no criminal case by the wife. Moreover, she disclosed that the husband and the wife are separated for last 10 years or more and there is irretrievable breakdown of marriage. Thus, the petitioner, the respondent herein prayed for granting of divorce and dissolution of marriage on the ground of cruelty and desertion by the appellant-wife.

[22] It has been contended that the marriage was solemnized on 14.12.1979 and their son was born on 27.07.1980 and the daughter in the year 31.12.1981. In the plaint, the date and the time was not mentioned when the appellant was found to have extra marital affair with Ashok Datta. Ashok Datta has not-been made party in this suit as he is expired. She always stayed at Pratapgarh after their marriage. During their stay in the rented house at Dharmanagar the appellant maintained extra marital relation with one Ashok Datta of Bhattapukur Agartala and previously said Datta was known to the appellant as her boyfriend and she was found in compromising position with said Datta at different times. The landlord of the rented house for this reason asked to vacate the rented house and for this reason after 3 months we were driven out of the rented premise and shifted to another rented house.

[23] The appellant resided sometimes with her son and daughter but the respondent has no personal knowledge. Learned counsel for the appellant has contended that the respondent was driven out from his job for his wrongful deeds but this is completely a wrong submission. After the marriage of our daughter the appellant maintained illicit relation openly and desperately inspite of objection and in consequence to those objections. The appellant leave the matrimonial house and stayed outside for 2/3 days by deserting the respondent and on being asked e about her whereabouts, she flared up and tortured the respondent mentally and physically and the said attitude and habit continued upto 18.04.2016.

[24] The father of the appellant was a habitual drunker and found lying here and there in drunken condition. The mother of the appellant had bad reputation in the society. Whether the complaint made before GBP O.P. has been registered as a case or there is GD entry of the same or not was known to the respondent. In Exhibit 27(SO) i.e. the complaint at GBP O.P. the respondent did not mention that the appellant has illicit relation with Ashok Dutta, Swapan Debnath, Abinash Ch. Das or Paritosh Chakraborty. The said complaint does not bear the seal of any P.S. No complaint was filed during the service tenure to my authority against the appellant. For maintaining illicit relation with the wife of one of the colleagues compelled to undergo voluntary retirement from the office. The respondent is not a prestigious lady and she is holding a good position in the eye of her children and desires to restore conjugal relation with the respondent.

[25] From the conspectus reading of the pleadings, evidence adduced by both sides and also the argument advanced by the learned counsels of both the parties, it transpires that the main allegation of dispute centers around the fact that the husband-respondent was humiliated and tortured by his wife-appellant both mentally and physically and also on the other hand on the issue of extra-marital affairs of his wife with other persons. Before delving deep into the very essence of this particular case, the appreciation of the evidence of both sides is necessary for discussion in this case.

[26] It would appear that the petitioner, the respondent herein, got a job in the Department of Power, Govt. of Tripura in the year 1979 and joined in service on 12th July 1979 as Operator Grade-II at Dharmanagar, North Tripura District. Meanwhile the respondent, the appellant herein, also passed said ITI Course. Subsequently their marriage was solemnised on 14.12.1979 at Laxmi Narayan Bari, Agartala, as per Hindu rites and customs, inspite of repercussion from the family of the husband-respondent regarding marriage. Out of their wedlock two children were born who are

presently married and the son of the parties is serving at Chennai in a private company.

[27] When they were living at Dharmanagar in course of service of the respondent, he came to know from reliable source that the appellant used to lead her life in an ugly manner and leading an unsocial life and maintained illicit relation prior to her marriage which also continued after marriage. It transpires that when the respondent used to go to the office for his duty, the appellant started maintaining extra marital relation with one Sri Ashok Datta of Bhattapukur, Agartala who was previously known to her as her boyfriend and she was found in a compromising position with aforesaid Ashok Datta in that rented house at Dharmangaar at different house.

[28] It further appears that when the respondent and the appellant were residing at Indranagar in the quarter of the respondent who used to serve in the power department at 79 tilla Grid-station, PW-2 Sri Mrinal Debnath caught the appellant and one Paritosh Chakraborty of the same quarter of the respondent in the same floor and his door was just fact to face with that of the respondent. When on several occasions, Sri Mrinal Debnath caught them red-handed in compromising position. It transpires that the respondent has made some other allegation of extramarital affairs of the appellant with other persons but he did not apprehend them nor there is any other eye witnesses to that effect, so those are not proved.

[29] The married life should be assessed as a whole and a few isolated instances over certain period will not amount to cruelty. The ill- conduct must be precedent for a fairly lengthy period where the relationship has deteriorated to an extent that because of the acts and behaviour of a spouse, one party finds it extremely difficult to live with the other party no longer may amount to mental cruelty. Making certain statements on the spur of the moment and expressing certain displeasure about the behaviour of elders may not be characterized as cruelty. Mere trivial irritations, quarrels, normal wear and tear of married life which happens in day to day life in all families would not be adequate for grant of divorce on the ground of cruelty. Sustained unjustifiable and reprehensible conduct affecting physical and mental health of the other spouse may lead to mental cruelty.

[30] In view of the fact that the parties have been living separately for more than 10 years and a very large number of aforementioned criminal and civil proceedings have been initiated by the respondent against the appellant and some proceedings have been initiated by the appellant against the respondent, the matrimonial bond between the parties is beyond repair. A marriage between the parties is only in name. The marriage has been wrecked beyond the hope of salvage, public interest and interest of all concerned lies in the recognition of the fact and to declare defunct de jure what is already defunct de facto. To keep the sham is obviously conducive to immorality and potentially more prejudicial to the public interest than dissolution of the marriage bond.

[31] We have already pointed out that in his divorce petition, the respondent has merely mentioned Section-13 of the Hindu Marriage Act and in the body of the petition he has highlighted certain instances which indicate that he wants divorce on the ground of cruelty and desertion. The evidences of parties have been discussed in detail. Mere trivial irritations, quarrel, normal wear and tear of married life which happen in day to day life in all families would not be adequate for grant of divorce on the ground of cruelty. Except in the cases when the marriage is found totally dead, it

would be appropriate for the courts and all concerned to maintain the marriage status as far as, as long as possible and whenever possible. We are of the considered view that none of these tests is satisfied in the given case.

[32] It is true that the parties are living apart over a considerable period of time. But this is not the only test of irretrievable break down of marriage. Divorce is found on fault theory. Husband applied for divorce on the ground of cruelty and desertion. He has not been able to prove either of these grounds. We have already discussed that the basic element of desertion is animus deserendi which has not been proved in this case. With regard to cruelty, it is seen that the appellant wife has pointed out to serious instances of cruelty against her husband, which have also been supported by consistent and coherent evidence of her witnesses.

[33] It reveals from the evidence that on earlier occasions the parties were present before this Court and for settling the matter; it was referred to the mediation but in vain. The husband-respondent expressed that he has no thought of going for a second marriage and he will remain like this for rest of his life. Considering the family status and the emotion of children who are already grownup, both the parties are having children and they also got married and having their own children but staying separately i.e. the appellant is presently staying with her daughter. In this backdrop, it may not be appropriate to leave the remaining life of a female, the appellant herein, stigmatic.

[34] However, since both of them are staying separately for a long period and there is no scope for reunion, considering the family background, the social status of the married life of their children and the parties are also senior citizens, they may not be subjected to lead divorce. It reveals from the record that, the learned Court below concluded the point of cruelty and leading adulteries life by the appellant-wife only by relying upon the evidence of PWs-1, 2 and 4, namely, Sri Santi Debnath, Sri Mrinal Debnath and Sri Subrate Ganguly.

[35] It has been contended that the appellant-wife had illicit relations with Ashok Dutta, Swapan Debnath, Abinash Ch. Das or Paritosh Chakraborty. On repeated occasions when the respondent-husband has noticed the same he has not taken any steps for any family settlement or holding panchayet to cautioned the above named persons who were so called in relation with his wife. There is no independent witness neither the landlord nor any neighbour has been examined. The persons with whom the appellant-wife had illicit relations have not been examined as witnesses also on behalf of the husband or the wife. The Court also has not taken any steps for summoning them as Court witness and to record their evidence.

[36] When the matter is of such serious nature, the Court could have taken appropriate steps but that has not been done by the learned Court below. There is no reason as to why the respondent-husband kept silent all through from 1980 onwards i.e. when the marriage has taken place i.e. in the year 1979 and within two years he noticed that his wife was in illicit relationship with the above named persons on different stages. He also consummated in 1980 with a son namely Sandip Debnath and in 1981 his daughter was born namely Saheli Debnath. Since, several issues stood unanswered, in support of the allegations made by the husband and the learned Court below has also not taken any steps for summoning the necessary persons as witness and record their

evidence, this Court finds it is not a case for granting any divorce following the drawbacks as discussed above.

[37] In view of above analysis and the having gone through the material evidence on record as well as the social status of the parties as they have grown children and their grand-children also to protect the modesty of a woman at this age, it would be appropriate if the findings of the learned Court below is set aside keeping only the maintenance part alive. As such, the husband will continue to pay Rs.10,000/- instead of Rs.7,000/- as awarded by the learned Court below considering the present price hike and old age ailments of the lady. Consequently, the appeal stands allowed. As a sequel, miscellaneous application, pending if any, shall stand closed.

B. PALIT, J

T. AMARNATH GOUD,

A.Ghosh

ANJAN GHOSH Digitally signed by ANJAN GHOSH

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